

TERMS OF USE

These Terms of Use ("Terms") govern your access to and use of www.senq.com.my (the "Site"), operated by SENHENG ELECTRIC (KL) SDN. BHD. ("Senheng"). By accessing or browsing the Site, you acknowledge that you have read, understood and agree to be bound by these Terms and our Privacy Notice. If you do not agree to these Terms, you must immediately cease using this Site.

All copyright and intellectual property rights in and to the Site and its contents are owned by SENHENG ELECTRIC (KL) SDN. BHD.

1. Site Content and Information

- a) All information, materials, images, descriptions and services made available on this Site (collectively, "Content") are provided for general information purposes only and are subject to these Terms.
- b) While senQ endeavours to ensure the accuracy of the Content, senQ does not warrant that the Content is complete, current or error-free. Product specifications, availability and pricing may be changed by manufacturers or suppliers without prior notice.
- c) All Images displayed on this Site are for illustrative purposes only and may differ from the actual products.
- d) The Content does not constitute legal, financial or professional advice. You are responsible for verifying any information and determining the suitability of any product before making a purchase.
- e) senQ shall not be liable for any loss or damage arising from reliance on any Content on this Site.
- f) This Site may display third-party advertisements or content. Such display does not constitute endorsement by senQ .
- g) senQ reserves the right to modify, update or remove any Content on the Site at any time without prior notice.

2. User Conduct and Right of Use

- a) You agree to use this Site only for lawful purposes and in accordance with these Terms.
- b) You agree not to:
- i) interfere with or disrupt the operation or security of this Site;
- ii) attempt to gain unauthorised access to any part of this Site; or
- iii) circumvent or disable any security or usage-limiting features of this Site.
- c) senQ reserves the right to report any suspected fraudulent, abusive or illegal activity to the relevant authorities.
- d) senQ may, at its sole discretion, suspend, restrict or terminate your access to the Site without liability.

3. Intellectual Property Rights

- a) You acknowledge that any intellectual property rights, including graphics, logos, trademarks, distinctive brand features, design, text, icons, the arrangement of them, sound recordings and all software relating to this Site, are owned by SENHENG ELECTRIC (KL) SDN. BHD. or any other third party.
- b) You may access and view this Site and its contents for personal and non-commercial use only.
- c) You shall not reproduce, modify, distribute, publish, transmit, reverse engineer or create derivative works from any part of the Site without senQ's prior written consent or, in the case of third party material, from the owner of the copyright in that material.
- d) You may not modify or copy the layout or appearance of this Site nor any computer software or code contained in this Site, nor may you decompile or disassemble, reverse engineer or otherwise attempt to discover or access any source code related to this Site.

4. Promotion Policy

- a) All promotions running in this Site are subject to each promotion's terms and conditions.
- b) All promotions run independently and can't be combined with other ongoing promotions unless otherwise stipulated.
- c) Each discount / voucher / promo code (if any) can only be used once per transaction per account and cannot be combined with other ongoing promotions unless otherwise stipulated.
- d) Each discount / voucher / promo code comes with expiry date and will end by 11.59pm on the specified date.
- e) senQ reserves the right to hold or cancel any order which violates any promotion's terms and conditions.

5. Payment and Fees

- a) You represent and warrant that if you are purchasing something from us or from our Merchants that:
- i) any credit card information you supply is true, correct and complete;
- ii) charges incurred by you will be honoured by your credit card company; and
- iii) you will pay the charges incurred by you at the posted prices, including any shipping fees and applicable taxes.
- b) Admin Fee

Due to the backend efforts in managing credit planning, we levy an administrative fee to any purchases that are made with the IPP mode of payment for 12 months period and above. IPP for 6 months and below will be waived of such fee. Such fee shall vary depending on the payment tenure of IPP and/or BNPL, and any changes will be notified in advance.

6. Shipping, Delivery and Pick-Up

A. Standard Delivery

- i) Delivery will take from 3 to 7 working days upon confirmation of order (excluding weekend & public holidays) where your order will be processed and dispatched from our warehouse. Please note that this may take longer during sales period. ii) Paid PlusOne member is entitled to 34% discount for home delivery fee.
- iii) All small appliances & digital gadgets will be charged with a standard rate of RM8 as courier fee.
- iv) Delivery is only applicable for West Malaysia only.
- v) Applicable to selected items on the Site only.
- vi) Basic installation will be provided without charges for purchases of bigger items, unless otherwise mentioned.
- vii) A signature is required upon receiving your order as a proof of receipt.

B. Pick Up Service

- i) Pick up will be available after a second email will be sent to you shortly after (excluding weekend & public holidays) where your order will be processed and dispatched from our warehouse to the selected pick-up point during online checkout. This may take longer during sales period.
- ii) Majority of the products are entitled for pick up services, except for big items.
- iii) Pick up will be available at the selected locations from 5pm onwards.

** In the event that you are not available to collect your order on the assigned date, you may contact or email us (Refer Clause 18 below).

7. Cancellation Policy

senQ reserves the right to hold or cancel any order with prior notice when deemed necessary.

senQ will proceed with cancellation should circumstances below occur:

- a) The item is not / no longer available
- b) Pricing disputes arise
- c) Product illustration differs from actual product
- d) Payment failed or not received
- e) Payment information could not be verified
- f) The order cannot be shipped to the address provided or where the shipping address could not be verified
- g) Violation of Senheng's Terms and Conditions
- h) Cancellation initiated by the Customer
- i) Any other unforeseen circumstances that lead to cancellation
- Upon cancellation, refund will be processed accordingly and might take up to 14 working days.

8. Return / Exchange Policy

- a) What is the return policy? Most orders are returnable within 7 calendar days upon receipt if they are incorrect, damaged or defective.
- i) Incorrect: The item is not the item you ordered. The model or colour is different from what is indicated on the order summary, or there are missing items or parts inside the packaging.
- ii) Damaged: The item is found to be damaged upon receipt.
- iii) Defective: The product is not functioning as described by the manufacturer.
- Certain items are not eligible to be returned or refunded, such as fridge and washing machine due to certain issues.
- b) Returned items must meet the following requirements:
- i) The item must be shipped back to us within 7 calendar days upon receipt (as proved by the postal or courier receipt)
- ii) Item must be in new condition and returned in its original packaging along with all accessories (including manuals, warranty cards, certificate of authenticity) and free gifts received with it. All packaging must be unused, unmarked and not defaced in any manner.
- iii) Item must be unused or hasn't been installed.
- iv) All securely sealed items must not be opened, especially electronic items (unless our service centre can ascertain that they were found defective at the time of opening).
- c) Will I get a refund in case of returning the item?

You will be eligible for a full refund if the item has been inspected and verified that the item was in perfect condition as described above.

- d) Can I return a damaged or defective product after 7 calendar days upon receipt?

If the item is covered by Replacement Warranty, you may bring the item to any senQ (or Senheng) outlet to verify and process the return warranty accordingly.

- e) How do I return an item?

You may contact or email us (Refer Clause 18 below).

9. Refunds

Depending on the mode of payment you've selected upon transaction, you will be offered the mode of refund based on your payment mode and may be required to enter additional information.

When will I receive my refund? Depending on the mode of payment you've selected upon transaction, you will be offered mode of refund based on your payment mode, which will take between 1 to 15 working days depending on our partnering banks. Please consult the table below for details.

HOW YOU INITIALLY PAID FOR YOUR ORDER	HOW YOU MAY RECEIVE YOUR REFUND	EXPECTED TIME TO TRANSFER FUNDS
Credit card, debit card	Credit card/debit card charge reversal (refund)	Up to 15 working days
Online banking	Bank transfer	5 - 7 working days

10. Third-Party Links and Services

- a) The Site may contain links to other sites, which are owned or operated by third parties. senQ are not responsible for the operation, availability or contents in these linked sites since such sites are not under senQ 's control.
- b) senQ provides these links to you for convenience only and the inclusion of any link does not imply senQ 's endorsement of the linked Site. You shall access linked Sites at your own risk. Subject to any non-excludable rights, senQ disclaims all warranties, express and implied, as to the accuracy, value, legality or otherwise of any materials or information contained on linked Sites. You should carefully review the terms of use and privacy policies of the Sites that you visit.

- c) Your interactions with third-party merchants, advertisers, or service providers accessed through this linked Sites are solely between you and that third party. senQ is not a party to any such transactions and disclaims all liability arising from them.

11. Secure and Transmission Risk

- a) senQ does not warrant that your access to this Site will be uninterrupted, error free or that any defects will be corrected.
- b) Whilst senQ and its third parties take precautions to protect information, senQ does not warrant that the security of any content or information you transmit via this Site. You therefore transmit to this Site at your own risk. However, once senQ or its third party receives your transmission, senQ and its third parties will take reasonable steps to preserve its security. If you become aware of any problems with the security of this Site, please contact us (Refer Clause 18 below).
- c) You must take your own precautions to ensure that the process which you use to access this Site or any Site does not expose you to the risk of viruses, malicious
- computer code or other forms of interference which may damage your own computer system. For the avoidance of doubt, neither senQ nor its third parties will accept any responsibility for any interference or damage to your own computer system which arises in connection with your use of this Site, any Site or any linked Site.

12. Submissions

By submitting any communication, feedback, suggestion, idea, or other content to senQ via the Site or other channels (collectively, "Submissions") shall be deemed and become senQ 's property and shall not be subject to any obligation of confidence on our part. Without limiting the foregoing, we shall be deemed to own all known and hereafter existing rights of every kind and nature regarding the Submissions and shall be entitled to unrestricted use of the Submissions for any purpose, without compensation to the provider of the Submissions.

13. Disclaimer

- a) The Site and Content are provided on an "as-is," "as available" basis.
- b) To the fullest extent permitted by law, senQ disclaims all warranties, express or implied, in relation to any information, content, materials or products included in this Site or to its availability, functionality or performance.
- c) senQ does not accept responsibility for any loss or damage, howsoever caused (including through negligence or matters outside their control), which you may directly or indirectly suffer in connection with your use of this Site or any linked Site, nor does senQ accept any responsibility for any such loss arising out of your use of, or reliance on, information contained on, or accessed through, this Site. To the maximum extent permitted by law, senQ disclaims any such representations or warranties as to the completeness, accuracy, merchantability or fitness for purpose of this Site or the information that it contains.
- d) The use of the information on this Site is at your own risk. To the extent permitted by law, senQ excludes all liability of any of them in respect of any injury, loss or damage arising out of, or related to, the use, or inability to use, the information on this Site or provided through this Site through email. This limitation of liability includes, but not limited to, compensatory, direct, indirect or consequential damages, interruption of business, loss of data, income or profit, loss of, or damage to property, and third party claims. If any liability is not able to be excluded

by law, senQ limits its liability to the re-supply of the relevant information or services.

14. Indemnity

You agree to indemnify senQ and other persons involved in the creation of this Site from all damages, losses, penalties, fines, expenses and costs (including legal costs) which arise out of or relate to your use of this Site, any information that you provide via this Site or any damage that you may cause to this Site. This indemnification includes, without limitation, liability relating to copyright infringement, defamation, invasion of privacy and trademark infringement.

15. Privacy Notice

Your personal data will be collected and processed in accordance with our Privacy Notice, which is incorporated into these Terms by reference.

16. Governing Law and Dispute Resolution

- a) These Terms are governed by and construed in accordance with the laws of Malaysia. Any dispute arising from or relating to these Terms or your use of the Site shall be subject to the exclusive jurisdiction of the courts of Malaysia.
- b) If you access this Site in a jurisdiction other than Malaysia, you are responsible for compliance with the laws of that jurisdiction, to the extent that they apply.

- c) senQ makes no representations that the content of this Site complies with the laws of any country outside Malaysia.

17. General Provisions

- a) These Terms may be amended at any time without notice. Your continued use of this Site following such amendment of these Terms will represent an agreement by you to be bound by the Terms as amended from time to time.
- b) If any provision of these Terms is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect and shall not be affected by the invalid provision.

- c) Where your access to this Site is terminated, all disclaimers and limitations of liability set out in these Terms will survive.

18. Contact Us

For any questions regarding these Terms, please contact:

Customer Service Department
Senheng Electric (KL) Sdn. Bhd.
44B, Jalan Pandan 3/2, Pandan Jaya, 55100 Kuala Lumpur
Tel: +6011 3600 4040
Email: ccc@senheng.com.my

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